



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State Contracting Activity	☒ Office of Acquisitions Management
---	---

Requiring Activity	NEA-SCA
---------------------------	---------

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

The Department of State (DOS) Bureau of Near Eastern Affairs (NEA), through the Bureau of Global Acquisitions (GA), has a need to extend all six (6) current Baghdad Life Support Services (BLiSS) Indefinite Delivery Indefinite Quantity (IDIQ) Contract Task Orders (TO) with Amentum Services, of Chantilly, Virginia, on a sole source basis. The extension of these TOs will allow continuation of full life support services without disruption to personnel working and living at Baghdad U.S. Embassy Compound (BEC) and other U.S. Government (USG) sites in Iraq. The continued support will ensure DOS, Department of War (DoW) and North Atlantic Treaty Organization (NATO) critical missions in Iraq are not disrupted. The total estimated value of these TO extensions is [REDACTED] covering a period of up to twelve (12) months.

GA awarded the original BLiSS IDIQ Contract to Amentum (previously PAE) on July 2, 2013, after a full and open competition best-value source selection process. Note in January 2023, DOS executed a modification that incorporated a Novation agreement from PAE to Amentum Services. The original BLiSS award allowed DOS to assume all life support services at DOS sites within Iraq.

Department of Defense (DoD) previously provided life support services for all U.S. Agencies at Iraq sites. Price and terms under this BLiSS Contract included a base period and four (4) option-year periods. The contract also included the FAR Clause 52.217-8 (Option to Extend Services). Shortly after award, the period of coverage under this IDIQ Contract was reestablished to start on August 1, 2013, due to multiple post award protests and after receipt of Head Contracting Authority (HCA)'s approved the Determination and Findings (D&F) to proceed overriding post-award GAO protests. Performance start dates for BLiSS TOs ranged from Nov 1, 2013, through Jan 1, 2014, after completion of each TO's transition period.

In 2015, NEA and GA began its acquisition strategy and planning process to develop a new multiple-award IDIQ type contract requirement to cover numerous common support services (including life support and facilities maintenance) at DOS locations around the world, titled "Diplomatic Platform Support Services" (DiPSS). At the time, NEA determined the eventual DiPSS awards would be the contractual vehicle used to obtain follow-on BLiSS contract services in Iraq.

In June 2019, eleven (11) selected Contractors received DiPSS multipleaward IDIQ Contracts and the use of DiPSS remains the primary contractual vehicle for BLiSS follow-on awards in Iraq. The GA CO Team held the DiPSS post award conference in July 2019 and briefed awardees DOS's path forward for planned TO awards. At the time, DOS's plan of action was to compete and execute the follow-on TO to replace the OMSS contract first, then compete to award the follow-on TO to replace the BLiSS contract. However, the Department encountered



numerous delays in its effort to execute the follow-on OMSS TO award titled “O&M+” under DiPSS. A major contributing factor to this delay was the high-risk security conditions in Iraq that started in May 2019. These conditions in Iraq caused the Department to implement an ordered departure (OD) that affected the originally planned O&M+ requirement.

The reduction in staffing at BEC and BDSC under the OD caused numerous contractor personnel to leave Iraq thereby reducing non-essential service requirements and disrupted support for O&M+ acquisition planning at Post. This OD was briefly lifted in Nov 2019, but reinstated on Mar 25, 2020, when Mission Iraq returned to OD status. The situation at post was then compounded by the coronavirus (COVID-19) infections and closures of international airports in Amman and Baghdad. After close to three (3) years, the OD was lifted on Jul 01, 2022.



The chart below under column C shows current end dates as authorized in the Mar 31, 2023, approved J&A for each BLiSS TO. Column D shows the number of months a new extension period is needed in order to bridge services without disruptions between current TOs [REDACTED]



Office of the Procurement Executive

U.S. DEPARTMENT of STATE

A	B	C	D
<u>Task Order Number</u>	<u>Service Description</u>	<u>Performance End Date</u>	<u>Extension Months Needed Until Mar 31, 2027</u>
SAQMMA-17-F-0018	BLISS Bottled Water Deliveries to Erbil [REDACTED]	Mar 31, 2026	12-months
SAQMMA-13-F-0436	BLISS Regional Security Office (RSO) Supplemental Support [REDACTED]	Mar 31, 2026	12-months
SAQMMA-14-F-0721	BLISS Food Services at Baghdad Embassy Compound (BEC) and Baghdad Diplomatic Support Center (BDSC), Iraq [REDACTED]	Mar 31, 2026	12-months
SAQMMA-14-F-0762	BLISS Program Management Office Support and Fuel Acquisition and Deliveries – BEC and BDSC [REDACTED]	Mar 31, 2026	12-months
SAQMMA-14-F-1065	BLISS at BEC [REDACTED]	Mar 31, 2026	12-months
SAQMMA-14-F-1020	BLISS at BDSC [REDACTED]	Mar 31, 2026	12-months
SAQMMA-15-F-1246	BLISS at the DOD Union III Site, Baghdad, Iraq [REDACTED]	Mar 31, 2026	12-months



Office of the Procurement Executive

U.S. DEPARTMENT of STATE

The authority for the last extended performance periods shown above was granted by approved J&A and D&F dated Oct 19, 2022 under unusual and compelling urgency. All prior approved J&As and D&Fs since the expiration of BLiSS TOs in 2018 are summarized below:

<u>TOs Original End Date</u>	<u>Approved J&A/D&F</u>	<u>TO Extension Mod</u>	<u>Extended PoP</u>
14F0436 – 10/31/2018	J&A - 10/26/2018	P00027 P00033	11/01/18 – 04/30/2019 05/01/19 – 10/31/2019
14F0721 – 11/30/2018		P00030 P00031	12/01/18 – 05/31/2019 06/01/19 – 11/30/2019
14F0762 – 11/30/2018		P00030 P00032	12/01/18 – 05/31/2019 06/01/19 – 11/30/2019
14F1065 – 12/31/2018		P00025 P00026	01/01/19 – 06/30/2019 07/01/19 – 12/31/2019
14F1020 – 12/31/2018		P00033 P00034	01/01/19 – 06/30/2019 07/01/19 – 12/31/2019
15F1246 – 04/23/2019		P00021	04/24/19 – 04/23/2020
14F0436 – 10/31/2020	J&A - 10/23/2019 D&F - 10/23/2019	P00036 P00039	11/01/19 – 04/30/2020 05/01/20 – 10/31/2020
14F0721 – 11/30/2020		P00035 P00036	12/01/19 – 05/31/2020 06/01/20 – 11/30/2020
14F0762 – 11/30/2020		P00038 P00040	12/01/19 – 05/31/2020 06/01/20 – 11/30/2020
14F1065 – 12/31/2020		P00031 P00032	01/01/20 – 06/30/2020 07/01/20 – 12/31/2020
14F1020 – 12/31/2020		P00039 P00040	01/01/20 – 06/30/2020 07/01/20 – 12/31/2020
15F1246 – 04/23/2021		P00023 P00026	04/24/20 – 10/23/2020 10/24/21 – 04/23/2021
14F0436 – 10/31/2021	J&A - 08/28/2020 D&F - 08/28/2020	P00043 P00047	11/01/20 – 04/30/2021 05/01/21 – 10/31/2021
14F0721 – 11/30/2021		P00037 P00040	12/01/20 – 05/31/2021 06/01/21 – 11/30/2021
14F0762 – 11/30/2021		P00042	12/01/20 – 05/31/2021



Office of the Procurement Executive

U.S. DEPARTMENT of STATE

	14F1065 – 12/31/2021		P00044	06/01/21 – 11/30/2021	
			P00035	01/01/21 – 06/30/2021	
			P00037	07/01/21 – 12/31/2021	
	14F1020 – 12/31/2021		P00043	01/01/21 – 06/30/2021	
			P00044	07/01/21 – 12/31/2021	
	15F1246 – 10/23/2021		P00027	04/24/21 – 10/23/2021	
	14F0436 – 10/31/2022	J&A - 09/02/2021 D&F - 09/02/2021	P00048	11/01/21 – 04/30/2022	
			P00053	05/01/22 – 10/31/2022	
	14F0721 – 11/30/2022		P00042	12/01/21 – 05/31/2022	
			P00043	06/01/22 – 11/30/2022	
	14F0762 – 11/30/2022		P00046	12/01/21 – 05/31/2022	
			P00047	06/01/22 – 11/30/2022	
	14F1065 – 12/31/2022		P00039	01/01/22 – 06/30/2022	
			P00041	07/01/22 – 12/31/2022	
	14F1020 – 12/31/2022		P00046	01/01/22 – 06/30/2022	
			P00047	07/01/22 – 12/31/2022	
	15F1246 – 10/23/2022		P00030	10/24/21 – 04/23/2022	
			P00031	04/24/22 – 10/23/2022	
	14F0436 – 10/31/2023	J&A - 10/19/2022 D&F - 10/19/2022	P00057	11/01/22 – 04/30/2023	
			P00062	05/01/23 – 10/31/2023	
	14F0721 – 11/30/2023		P00045	12/01/22 – 05/31/2023	
			P00047	06/01/23 – 11/30/2023	
	14F0762 – 11/30/2023		P00049	12/01/22 – 05/31/2023	
			P00053	06/01/23 – 11/30/2023	
	14F1065 – 12/31/2023		P00044	01/01/23 – 06/30/2023	
			P00046	07/01/23 – 12/31/2023	
	14F1020 – 12/31/2023		P00049	01/01/23 – 06/30/2023	
			P00051	07/01/23 – 12/31/2023	
	15F1246 – 10/23/2023		P00033	10/24/22 – 04/23/2023	
			P00035	04/24/23 – 10/23/2023	
	14F0436 – 03/31/2026	J&A - 2/28/2024 D&F - 2/28/2024	P00064	11/01/23 – 03/31/2024	
			P00068	04/01/24 – 03/31/2025	
			P00074	04/01/25 – 08/31/2025	



Therefore, extensions of BLiSS TOs are needed to account for the already realized and further anticipated and potential delays.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

Estimated price of the twelve-month extension for BLiSS services is approximately [REDACTED] and is further broken down by TOs as follows:

Page 7 of 13



	BEC and BDSC			
SAQMMA-14-F-1065	BLiSS at BEC			
SAQMMA-14-F-1020	BLiSS at BDSC			
SAQMMA-15-F-1246	BLiSS at Union III Site, Baghdad, Iraq			
TOTAL				

Life support services under these tasks include, but are not limited to, providing:

- food and bottled water purchases and deliveries,
- food preparation, serving, cleaning, and other related food services,
- fuel acquisition, deliveries, supply chain management, and quality test services of supplies for vehicles, generators and aircraft;
- shuttle and transportation services;
- airfield operations;
- waste management and disposal;
- fire protection services;
- postal and mail services
- warehouse operations;
- recreation services, postal support services, and
- Regional Security Office (RSO) supplemental staffing /equipment maintenance.
- laundry services
- program management

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.1 and substantiated by the following:

☒ FAR 6.103-2 – Unusual and compelling urgency.

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

The current contractor, Amentum Services, is uniquely qualified to continue performance for the following reasons:



- Only the current contractor is able to perform the needed services while a follow-on task order is competed, due to the lengthy and resource intensive processes, coordination, and funding required to mobilize, and transition to, a new contractor and for a new contractor to attain proficiency in performing to maintain vital services to the high threat mission supporting thousands of personnel.
- Mobilizing a new contractor to perform during the follow-on task order fair opportunity process would drive a significant increase in required funding, due to the relatively short time frame for performance in a location that requires the above-noted time, effort, and resources. Pricing for a new contractor would be unfavorable for the government and above market pricing, due to the shorter available time to amortize a new contractor's expenses. Higher expenses would be further driven by decreased efficiency in performance, as a new contractor learns the unique aspects of the work and mission.
- Amentum is already providing the required services to the U.S. government in support of the services cited on satisfactory performance to date. They are positioned, staffed, and licensed to operate in Iraq, have significant investments in the supply chain and logistics to support DOS at a High Threat Post, and have knowledge and experience to continue operations at all sites.
- Failure to permit the execution of this extension will result in failure to support DOS mission in Iraq and result in serious injury to the Government. Uninterrupted food services, water supply, airfield services, fuel procurement and other services and staff augmentation are necessary to ensure the basic day-to-day health, safety, and security of USG (and contractor) personnel in country. These life support services cannot be interrupted without jeopardizing health and safety of personnel and ultimately the mission of the USG in Iraq.
- Finally, only the required amount of time authorized by this J&A will be used to extend the existing BLISS Task Orders. The goal is to end the BLISS Task Orders as quickly as possible, while maintaining procurement integrity and fairness in a fair opportunity re-compete process

SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES

A SAM.gov. notice of the proposed action will be published in accordance with FAR 5.201.

The Department is aware of available DoD LOGCAP Contractors, however, the time required to obtain continuation of services without the likelihood of service disruptions prevents DOS from considering any other source except for Amentum at this time, as noted above.

SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

The Contracting Officer has determined that the anticipated cost and price to the Government will be determined fair and reasonable based on the following:



Amentum proposed prices will be submitted under certified cost or pricing data unless an exception under FAR 15.403-2 applies. The Government intends to use cost analysis and or combined with price analysis to determine fair and reasonable prices.

SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED

A market survey was not conducted as this is a continuation of existing services by the incumbent contractor. Substantial harm to DOS and DoD personnel and the Iraq mission as well as to the U.S. Government will occur if continuation services are not provided. Issuing an award to any other contractor would result in serious injury to the Government, i.e., interruption to basic day-to-day health, safety, and security of USG (and contractor) personnel that would jeopardize personnel and mission of the USG in Iraq.

SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION

N/A

SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION

N/A

SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED

This J&A will be published on SAM.gov in accordance with FAR Section 6.301 within 14 days of after issuance of each Task Order extension.



SECTION 12. CERTIFICATIONS

All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 6.104-2)

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical and Requirements Cognizance:

SIGNATURE:

Deputy Executive Director
NEA-SCA/EX

_____ Date

LEGAL SUFFICIENCY REVIEW

This J&A is hereby determined to be legally sufficient.

SIGNATURE:

Legal Advisor
L/BA

_____ Date



CERTIFICATIONS (Continued)

CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

SIGNATURE:

Contracting Officer
GA/AM/TSS/SVC/RS

Date

SIGNATURE:

Branch Chief
GA/AM/TSS/SVC/RS

Date

SIGNATURE:

Division Director (Acting)
GA/AM/TSS/SVC/RS

Date

SECTION 13. APPROVALS



**COMPETITION ADVOCATE
SIGNATURE:**

[Redacted]
Acting Competition Advocate
A/GA/AP

Date

**HEAD OF THE CONTRACTING ACTIVITY
SIGNATURE:**

[Redacted]
HCA

Date

**SENIOR PROCUREMENT EXECUTIVE OF THE AGENCY
SIGNATURE:**

[Redacted]
Senior Procurement Executive (Acting)

Date